

## TENTATIVE RULINGS

### DEPT C34

#### JUDGE H. SHAINA COLOVER

#### LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

**Tentative Rulings:** The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

**Submitting on Tentative Rulings:** If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

**Non-Appearances:** If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

**Appearances: Remote and In-Person Proceedings.** Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

**Court Reporters:** Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

**Public Access:** The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

## TENTATIVE RULINGS

Date: May 28, 2026

| #  | Case Name                               | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
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| 1. | 30-2025-01503670<br><br>Truong vs. Dong | <p><b>1. Case Management Conference</b><br/><b>2. Demurrer to Amended Complaint</b></p> <p>Defendant Minh Trang Dong (“Defendant”) demurs to all seven causes of action in Plaintiff Manh Van Truong’s (“Plaintiff”) First Amended Complaint (“FAC”). Based on applicable law, the demurrer is <b>SUSTAINED in part with leave to amend</b> and <b>OVERRULED in part</b>, as set forth below.</p> <p>As a preliminary matter, Defendant demurs to all causes of action on the grounds that they are barred by Business and Professions Code §7031 because Plaintiff is attempting to collect compensation for acts that require a contractor’s license, which Plaintiff does not have. Section 7031 prohibits such actions.</p> <p>Business and Professions Code §7026 defines a “contractor” as being synonymous with “builder” and “is any person who undertakes to or offers to undertake to, or purports to have the capacity to undertake to, or submits a bid to, or does himself or herself or by or through others, construct, alter, repair, add to, subtract from, improve, move, wreck or demolish any building . . .” (Bus. &amp; Prof. Code §7026.) Whether work falls within the scope of section 7031 involves a factual inquiry. Where an individual was determined to have only provided construction management services to a private property owner, Courts have held that the action was not barred by section 7031. (See <i>The Fifth Day, LLC v. Bolotin</i> (2009) 172 Cal.App.4th 939.)</p> <p>In finding the plaintiff’s claims were not barred by section 7031, the <i>Fifth Day</i> Court noted that “Plaintiff had no responsibility or authority to perform any construction work on the project, or to enter into any contract or subcontract for the performance of such work.” (<i>Id.</i> at p. 948.) Similarly, here, Plaintiff has alleged that his role was as a consultant assisting the homeowner in managing the project under California’s homeowner-builder exemption, with the homeowner acting as general contractors and directly hiring subcontractors; his role was “limited to consultation, guidance and providing access to his network of subcontractors; Defendant herself managed and paid all subcontractors.” (FAC ¶ 4.)</p> <p>These allegations are sufficient at the pleading stage to support a finding that section 7031 does not apply to Plaintiff’s claims.</p> <p><b><u>First Cause of Action for Breach of Oral Agreement</u></b></p> <p>“The elements of a breach of contract claim are: ‘(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.’” (<i>Salami v. Los Robles Regional Medical Center</i> (2024) 103 Cal.App.5th 1023, 1027.)</p> <p>Defendant contends that Plaintiff has not adequately alleged the terms of a contract. However, Plaintiff has sufficiently pled that the parties entered into an oral agreement in March 2024,</p> |

whereby Defendant would pay Plaintiff \$100,000 for Plaintiff to provide consultation, guidance and subcontractor contacts to assist Plaintiff in building an ADU on her property. (FAC ¶¶ 2, 6.) In May 2024, after Defendant pled financial hardship, Plaintiff agreed to reduce his fee to \$40,000. (FAC ¶ 8.) Plaintiff alleges he fully performed his part of the agreement, and Plaintiff was able to complete her ADU “for under \$200,000, saving Defendant more than \$100,000.” (FAC ¶ 11.)

These allegations are sufficient to state a breach of contract cause of action. Plaintiff has alleged he provided valuable services that saved Defendant more than \$100,000 in construction of her ADU.

The demurrer to the first cause of action is **OVERRULED**.

### **Second and Sixth Causes of Action for Fraud and Identity Theft**

To plead a fraud-based cause of action, the following elements must be alleged: (1) misrepresentation (false representation or concealment); (2) knowledge of falsity; (3) intent to deceive; (4) justifiable reliance; and (5) resulting damage. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.)

For causes of action for intentional and negligent misrepresentation, each element must be pled with specificity. (*Lazar, supra*, 12 Cal.4th at p. 645.) The particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. (*Ibid.*)

As to the second and sixth causes of action, Defendant contends that Plaintiff has not pled a misrepresentation apart from the breach of contract, and that the allegations have not been pled with sufficient specificity.

Plaintiff’s conclusory allegations that “Defendant knowingly misrepresented financial hardship to induce Plaintiff to reduce compensation to \$40,000, despite ability to pay” are not sufficient to meet the heightened pleading requirements for a fraud cause of action. (FAC ¶ 19.) Neither is Plaintiff’s conclusory allegation that “Defendant used Plaintiff’s business information, including his Home Depot Pro account, without consent, to obtain discounts on materials.” (FAC ¶ 17.)

The demurrers to the second and sixth causes of action are **SUSTAINED with 20 days leave to amend**.

### **Third Cause of Action for Unjust Enrichment**

While there is a split in authority as to whether “unjust enrichment” is the technically correct label, California authority has recognized that “[c]ommon law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient.” (*Munoz v. MacMillan* (2011) 195 Cal.App.4th 648, 661.) “ ‘Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred “is an obligation (not a true contract [citation]) created by the law without regard to the intention of the parties, and is designed to restore the aggrieved party to his or her former position by return of the thing or its equivalent in money.” ’ ” (*Ibid.*; see also *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138 [Fourth District, Division 1]; *Hooked Media Grp., Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 336 [Sixth District] (no cause of action in California for unjust enrichment) and compare with *Peterseon v. Cellco Partnership* (2008) 164 Cal.App.4th 1583, 1593 [Fourth District, Division 3]; *Professional Tax Appeal v.*

*Kennedy-Wilson Holdings, Inc.* (2018)) 29 Cal.App.5th 230, 238 [Second District, Division 8] (setting forth elements of unjust enrichment claim).)

“The elements of a cause of action for unjust enrichment are simply stated as ‘receipt of a benefit and unjust retention of the benefit at the expense of another.’ ” (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238.)

While it is unsettled whether Plaintiff has used the correct label for this cause of action, the FAC sufficiently alleges that Defendant received the benefit of Plaintiff’s services and unjustly retained the benefit. (FAC ¶¶ 9, 11, 20.)

The demurrer to the third cause of action is **OVERRULED**.

#### **Fourth Cause of Action for Promissory Estoppel**

The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance. (*Wells Fargo Bank, Na. v. FSI, Financial Solutions, Inc.* (2011) 196 Cal.App.4th 1559, 1573.)

Defendant contends that Plaintiff has not alleged a clear and unambiguous promise. For the reasons discussed above in connection with Plaintiff’s first cause of action for breach of oral contract, Plaintiff has sufficiently pled a promise, upon which he relied and was injured. (See also, FAC ¶ 21.)

The demurrer to the fourth cause of action is **OVERRULED**.

#### **Fifth Cause of Action for Defamation**

“The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or cause special damage.” (*Bui v. Ngo* (2024) 101 Cal.App.5th 1061, 1072 [internal quotations omitted].)

Here, the FAC alleges that “Defendant made false and unprivileged statements of fact about Plaintiff, including that he was a fraud, a cheater, an unlicensed contractor, and that he charged Defendant more than \$300,000” and that “multiple friends, associates, and contractors reported to Plaintiff that Defendant made such statements. These reports were consistent, credible, and widely repeated in the Vietnamese American community.” (FAC ¶¶ 22-23.)

The FAC further alleges that “Plaintiff is a well known member of the local Vietnamese American community, as the owner of a large home improvement center that primarily serves Vietnamese customers. Defendant and her husband are well known singers with large audiences. Defendant’s statements carried particular weight, spread rapidly, and caused extreme harm to Plaintiff’s reputation, business, and emotional well being.” (FAC ¶ 24.)

These allegations are sufficient to state a cause of action for defamation against Defendant.

Accordingly, the demurrer to the fifth cause of action is **OVERRULED**.

#### **Seventh Cause of Action for Foreclosure of Mechanic’s Lien**

California Civil Code § 8400 specifically enumerates the persons entitled to a mechanic’s lien, including direct contractors, subcontractors, material suppliers, equipment lessors, laborers, and

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|    |                                                                                                       | <p>design professionals. Cal Civ Code § 8400. Plaintiff has not alleged that he is a contractor, subcontractor, or material supplier as required by statute. Rather, the allegations of the FAC suggest that Plaintiff does not fall into any of the above categories.</p> <p>Accordingly, the demurer to the seventh cause of action is <b>SUSTAINED with 20 days leave to amend.</b></p> <p><b>Defendant to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2. | <p><b>30-2024-01416147</b></p> <p><b>George vs. Laguna Hills Health and Rehabilitation Center</b></p> | <p><b>1. Case Management Conference</b><br/><b>2. Motion to Compel Arbitration</b></p> <p>Defendants’ AG Laguna Hills LLC dba Laguna Hills Health and Rehabilitation Center (erroneously sued as Laguna Hills Health and Rehabilitation Center; AG Laguna Hills, LLC) (“AG Laguna Hills”) and Cambridge Healthcare Services LLC (“Cambridge”) (collectively, “Moving Defendants”) petition for an order compelling Plaintiffs to arbitrate the controversy alleged in the First Amended Complaint to stay the instant action. Based on applicable law, the Petition is <b>GRANTED, in part, DENIED, in part</b> as follows.</p> <p><b><i>Overage in Reply</i></b></p> <p>A reply memorandum may not exceed 10 pages. (California Rules of Court, rule 3.1113(d).) “A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late filed paper.” (California Rules of Court, rule 3.1113(g).) While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (<i>Ibid.</i>)</p> <p>The Court notes that the reply is 12 pages long and therefore exceeds the 10-page limit for replies. No permission was granted for an extended reply. However, the Court exercises its discretion to accept and consider the 12-page reply.</p> <p><b><i>Existence of Agreement to Arbitrate</i></b></p> <p>“ ‘California statutes create a “summary proceeding” for resolving petitions or motions to compel arbitration. [Citation.] “The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” [Citation.]’ [Citation.] (<i>Kader v. Southern California Medical Center, Inc.</i> (2024) 99 Cal.App.5th 214, 220–221.)</p> <p>“Under ‘both federal and state law, <i>the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.</i>’ [Citation].” (<i>Cruise v. Kroger Co.</i> (2015) 233 Cal.App.4th 390, 396, emphasis in original (“<i>Cruise</i>”).) The court is to determine whether a valid arbitration agreement exists, and if so, whether the agreement encompasses the dispute at issue. (<i>Omar v. Ralphs Grocery Co.</i> (2004) 118 Cal.App.4th 955, 960-961, citing <i>Howsam v. Dean Witter Reynolds, Inc.</i> (2002) 537 U.S. 79, 84; <i>Lifescan, Inc. v. Premier Diabetic Servs., Inc.</i> (9th Cir. 2004) 363 F.3d 1010, 1012.)</p> |

“ ‘[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.’ ” (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal. App. 4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.) The Court may decide that some causes of action are subject to arbitration. (*Lane v. Francis Capital Management, LLC* (2014) 224 Cal.App.4th 676, 684.)

Parties moving to compel arbitration “may meet their initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) “A plain reading of the statute indicates that as a preliminary matter the court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity.” (*Id.* at p. 219.) Once the petitioner alleges that the agreement exists, the burden shifts to respondent to prove the falsity of the purported agreement. (*Ibid.*)

Here, Moving Defendants attach a copy of the Arbitration Agreement to Declaration of Jeffrey S. Healey filed in support of the petition. The Arbitration Agreement contains the following relevant provisions:

Article 1. It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently or incompetently rendered, will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.

Article 2. It is further understood that any dispute between Resident and AG Laguna Hills, LLC dba Laguna Hills Health and Rehabilitation Center its owners, operators, officers, directors, administrators, staff, employees, agents, and any management company and/or consulting company that provides services to the Facility that relates to the provision of care, treatment and services the Facility provides to the Resident, including **Cambridge Healthcare Services**, and all related entities and individuals, their staff, personnel, employees, owners, officers, directors, members, and agents (collectively referred to herein as “Facility”), including any action for injury or death arising from negligence, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections and Health and Safety Code section 1430), will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. The parties to this agreement are giving up their Constitutional right to have

all disputes decided in a court of law before a jury, and instead are accepting the use of binding arbitration.

(Ex. A to Declaration of Jeffrey S. Healey (“Healey Decl.”), Arbitration Agreement, Articles 1 and 2, emphasis added.)

Based on the foregoing, Moving Defendants establish the existence of an Arbitration Agreement executed by the Decedent, Robert W. Scott (the “Decedent”). Plaintiffs’ claims for negligence, elder abuse, willful misconduct, and wrongful death fall within the scope of the claims covered by the Arbitration Agreement. Plaintiffs do not dispute that the Decedent executed the Arbitration Agreement.

In a conclusory manner, Plaintiffs assert that the Decedent lacked capacity to consent to arbitration due to his brain injury, and that Plaintiffs are entitled to rescission of the Arbitration Agreement, but Plaintiffs provide no evidentiary or legal support for these contentions. (See Opposition, 7:21-22.) The court may “‘disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt.’” (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 citing *City of Santa Maria v. Adam* (2012) 211 Cal.App.4th 266, 287.)

#### ***Ability to Enforce Arbitration Agreement***

Plaintiffs contend that one of the Moving Defendants to the instant Petition, Cambridge Healthcare Services, is a non-party to the Arbitration Agreement, and thus, cannot invoke it.

Moving Defendants assert that contrary to Plaintiffs’ contention, the Arbitration Agreement expressly states that it applies to Cambridge Healthcare Services and that it is clearly a party to the Arbitration Agreement.

The general rule is “one must be a party to an arbitration agreement to be bound by it or invoke it.” (*Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763.)

As set forth above, Article 2 of the Arbitration Agreement expressly provides that it applies to Cambridge Healthcare Services. As it is bound by the Arbitration Agreement, Cambridge Healthcare Services is a party to the Arbitration Agreement and may enforce it.

#### ***Applicability of Arbitration Agreement to Plaintiffs***

In opposition, Plaintiffs assert that they are not bound by the Arbitration Agreement signed by the Decedent, and that “[i]n an elder abuse action, language stating that by signing the agreement the resident plaintiff (Decedent) is binding not only the resident plaintiff but also the resident plaintiff’s heirs to arbitration is legally invalid,” such that “[a]s a matter of law, adult heirs are not bound to arbitration absent their own agreement to arbitrate their claims.” (Opposition, 7:4-12.) They cite to no cases for this proposition, and instead, cite to only a secondary source.

In reply, Moving Defendants contend that the Arbitration Agreement expressly applies to heirs as set forth in Article 4, and that as the wrongful death claim is predicated upon professional negligence in failing to provide care, Plaintiffs, i.e., wrongful death claimants or heirs, are subject to arbitration. Moving Defendants additionally argue that even if the Court finds the heirs’ wrongful death claim is not subject to arbitration, the claims brought by the estate, i.e., the

first cause of action for Negligence, second cause of action for Elder Abuse, and third cause of action for Willful Misconduct are subject to arbitration and should be ordered to arbitration.

“Code of Civil Procedure section 377.60 (section 377.60) provides that specified persons, including a decedent’s parents, may assert a cause of action for death ‘caused by the wrongful act or neglect of another.’ [Citation.] In California, wrongful death claims, unlike survivor claims, are not derivative of the decedent’s own claims; they are, rather, independent statutory actions accruing to the decedent’s heirs for pecuniary injuries suffered by the loss of a relative. [Citations.] Because wrongful death claimants are entitled to sue in their own right, not merely as successor in interest to their decedent, they are not ordinarily bound by any arbitration agreement the decedent may have signed. [Citations.]” (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 365, 375 (“*Holland*”).)

“As a general rule, plaintiffs cannot be compelled to arbitrate their disputes if they have not previously agreed to arbitration.” (*Holland, supra*, 18 Cal.5th at p. 370.) However, there is an exception for certain wrongful death claims based on medical malpractice as set forth in *Ruiz v. Podolsky* (2010) 50 Cal.4th 838. (*Ibid.*) “*Ruiz* does not apply to every type of wrongful death claim that might be brought against a health care provider – particularly a provider that, like the skilled nursing facility in this case, provides both medical care and day-to-day custodial care of dependent adults. Under *Ruiz*, plaintiffs’ claim must be submitted to arbitration only if they are raising a dispute about medical malpractice as that term is defined in MICRA’s arbitration provision – that is, a dispute ‘ “as to whether any medical services . . . were improperly, negligently or incompetently rendered.” ’ (Code Civ. Proc., § 1295, subd. (a) (§ 1295(a)).)” (*Id.* at pp. 370-371.) “*Ruiz* does not require plaintiffs to arbitrate their disputes about a facility’s neglect of a resident’s basic welfare and safety needs.” “In the context of a skilled nursing facility, the operative question is whether such duties are owed by virtue of being a medical services provider or by virtue of being the custodian of a dependent adult. Claims premised on the manner in which the skilled nursing or other long-term care facilities protect the basic welfare and safety of resident fall outside the scope of section 1295(a), and thus outside the scope of *Ruiz*.” (*Id.* at p. 381.) “Not every claim of neglect against a long-term nursing facility – not even neglect that takes the form of failure to prevent falls or infection – will qualify as a claim of medical malpractice subject to *Ruiz*. The critical question remains whether the complaint alleges neglect acts or omissions by ‘health care providers in their capacity as providers’ rather than ‘against custodians and caregivers . . . that may or may not, incidentally, also be health care providers.’ [Citation.]” (*Id.* at p. 382.) “The dispositive inquiry for purposes of *Ruiz* is ultimately whether the plaintiff is raising a dispute about medical malpractice, not whether the plaintiff has adequately alleged a claim under any particular statutory or common law cause of action.” (*Id.* at p. 384.)

With regards to Plaintiffs, who have brought the instant action as individuals and as the surviving heirs, personal representatives, and/or successors in interest of Decedent, and/or Administrators or Executors of the Estate of Robert Scott, Article 4 of the Arbitration Agreement states, in part:

**This Agreement is binding on all parties, including the Resident’s representatives, executors, family members, and heirs who bring any claims individually or in a representative capacity.** The Resident’s representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors



in interest and heirs are subject to binding arbitration. This Agreement may be rescinded by written notice within thirty (30) days of signature.

(Ex. A to Healey Decl., Arbitration Agreement, Article 4.)

Plaintiffs' survivor claims, i.e., the first cause of action for Negligence, second cause of action for Elder Abuse, and third cause of action for Willful Misconduct allege that the Defendants failed to carry out their custodial obligations, and that Defendants' conduct amount to their failure to provide medical care for the Decedent's physical and mental health needs. (Ex. 1 to Declaration of Robert E. Makley, ROA 16, First Amended Complaint [erroneously named "Complaint"] ("FAC"), ¶ 25.) As to AG Laguna, it is alleged that the Decedent was admitted to AG Laguna numerous times during 2023, including, but not limited to, admissions on March 3, 2023 through April 3, 2023, April 10, 2023 through May 8, 2023, and May 10, 2023 through June 11, 2023," and that "[a]s a result of the neglect of [AG Laguna], Decedent developed pressure wounds to both heels, coccyx, and left buttock," which "continued to worsen during his admissions." (FAC, ¶ 21.) It is also alleged that Defendants failed to provide Decedent with proper nourishment and hydration, and failed to assist the Decedent with personal hygiene, which was negligent and also constitutes "neglect" as defined in Welfare & Institutions Code § 15610.57. (FAC, ¶ 26.) It is additionally alleged that Defendants failed to properly reposition the Decedent during his stays at the facilities, failed to keep him clean and dry, failed to perform wound care and change his dressings daily or as needed, and failed to turn or reposition the Decedent properly or adequately, resulting in the development and/or worsening of pressure ulcers. (FAC, ¶ 27.) It is further alleged that Defendants failed to provide the Decedent with the assistance he required with his activities for daily living including "dressing, bathing/showering, personal hygiene and oral care, and repositioning and turning in bed," and that Defendants failed to perform proper skin care and failed to properly treat his condition. (FAC, ¶¶ 28, 30.) Plaintiffs allege that "Defendants failed to hire properly qualified personnel, failed to hire sufficient staff to meet the needs of the patients at the facilities, failed to properly train personnel at the facilities, failed to properly supervise personnel at the facilities, failed to provide sufficient resources to the facilities so that the needs of the patients could be met in accordance with the federal and state laws/regulations, failed to properly assess and monitor the DECEDENT'S physical and mental care needs, failed to provide the DECEDENT with proper nourishment and hydration, failed to assist the DECEDENT with personal hygiene and failed to evaluate and report the DECEDENT'S condition to appropriate medical personnel and/or his family." (FAC, ¶ 37.) These allegations are alleged under the first cause of action and are incorporated into the second and third causes of action. (FAC, ¶¶ 40, 100.) As Plaintiffs' survivor claims fall within the scope of the Arbitration Agreement set forth in Articles 1 and 2, they are subject to arbitration.

What remains is Plaintiffs' individual claims for wrongful death (fourth cause of action). The fourth cause of action expressly alleges that it incorporates every allegation contained in the Preliminary Statement and in the second cause of action (for elder abuse), but not the first cause of action for negligence. (FAC, ¶¶ 114-115.) The second cause of action alleges that Defendants engaged in conduct which resulted in Decedent being subject to "physical abuse", "neglect", "abandonment" and "isolation" as defined in the applicable Welfare & Institution Code sections. (FAC, ¶ 48.) The second cause of action also alleges that "Defendants neglected the DECEDENT by, in part, failing to assist in personal hygiene and/or in the provision of food, clothing or shelter, failing to provide medical care for the DECEDENT's physical and mental health needs, failing to protect from health and safety hazards, failing to prevent malnutrition and/or dehydration, and/or failing to ensure adequate supervision of the DECEDENT who was left unsupervised, unmonitored and unassisted on many occasions and who suffered the development and/or worsening of pressure injuries . . . ." (FAC, ¶ 49.) It is additionally alleged:

“Defendants also failed to document accurately; failed to have a comprehensive care plan; failed to update the care plan; failed to assess and address metabolic laboratory levels; failed to provide immediate adequate and appropriate nutrition with increased protein, Vitamin C and Zinc, to help the healing process of the DECEDENT’s beginning and/or continuing skin breakdown; failed to provide adequate nutritional care to facilitate the prevention and healing of skin breakdown; failed to provide an effective and complete nutritional care plan with timely appropriate nutritional interventions; failed to recognize/assess and appreciate that the DECEDENT was at risk for the development of skin breakdown and pressure ulcers secondary to his multiple medical conditions and/or if he was not turned or repositioned regularly; failed to protect the DECEDENT from harm; failed to assess the DECEDENT; failed to follow doctor’s orders; and, failed to notify the DECEDENT’s doctors, . . .” (FAC, ¶ 50.) It is further alleged that Defendants failed to provide adequate staffing levels and supervision, failed to provide corrective/preventative measures, and failed to properly monitor and adequately assist the Decedent. (FAC, ¶ 55.) By these allegations, Plaintiffs are not raising a dispute about medical malpractice, but alleges wrongful death through “physical abuse”, “neglect”, “abandonment” and “isolation” under the Elder Abuse and Dependent Adult Civil Protection Act. **Consequently, Plaintiffs’ individual cause of action for wrongful death (fourth cause of action) is not subject to arbitration.**

***Applicability of Code of Civil Procedure section 1281.2(c)***

In opposition, Plaintiffs contend that Code of Civil Procedure section 1281.2(c) applies and that compelling arbitration of Plaintiffs’ claims would create the possibility of inconsistent rulings on issues of fact or law because the claims against co-Defendants, Trabuco Hills Post Acute, Lake Forest Post Acute, LLC, Providence Mission Hospital Mission Viejo and Mission Hospital Regional Medical Center, who contributed to Decedent’s injuries, do not enjoy the right to compel arbitration, such that if the case is split up, there is a potential issue as to who is liable for what, which ought to be decided by a single fact-finder to avoid the possibility of different fact-finders coming to different conclusions.

Moving Defendants assert in reply that the request to deny the petition based on Code of Civil Procedure section 1281.2(c) is without merit as the Arbitration Agreement expressly elects the Federal Arbitration Act (“FAA”) as the choice of law clause and in doing so, precludes the application of State procedural rules, such as Section 1281.2(c) which would otherwise result in a denial of the Petition. Moving Defendants also argue that Article 6 of the Arbitration Agreement expressly exclude Code of Civil Procedure section 1281.2(c) from the Arbitration Agreement, which is permitted by case law.

The applicability of the FAA and the terms of the Arbitration Agreement determine whether Code of Civil Procedure section 1281.2(c) is applicable.

The party asserting the FAA bears the burden to show it applies by presenting evidence establishing the contract with the arbitration provision has a substantial relationship to interstate commerce, and the failure to do so renders the FAA inapplicable. (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 234.) “[T]he United States Supreme Court has identified ‘three categories of activity that Congress may regulate under the commerce power: (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce and persons or things in interstate commerce, and (3) those activities having a substantial relation to interstate commerce.’ [Citations.]” (*Ibid.*)

“Payments of Medicare or Medicaid funds are transactions involving commerce.” (*Willis v. Prime Healthcare Services, Inc.* (2014) 231 Cal.App.4th 615, 626.)

Parties to an arbitration agreement may expressly designate that any arbitration proceeding should move forward under the FAA’s procedural provisions rather than under state procedural law. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394.) By stating that “enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act” in the arbitration provision, “the parties intended to incorporate the FAA with respect to compelling arbitration.” (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) Thus, even if a transaction does not involve interstate commerce, “the parties may [] voluntarily elect to have the FAA govern enforcement of the [a]greement.” (*Id.* at 355 [“the presence of interstate commerce is not the only manner under which the FAA may apply.”]; see also *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76 [“since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.”].) “Absent such an express designation, however, the FAA’s procedural provisions do not apply in state court.” (*Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 174.)

Here, the Arbitration Agreement states, in relevant part:

Article 7. This Agreement relates to the Resident's admission to the Facility, and the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors. The parties, therefore, agree that the underlying admission to the Facility involves interstate commerce. Accordingly, **this Agreement is to be governed by the Federal Arbitration Act and the procedural rules set forth in the Federal Arbitration Act (9 U.S.C. Sections 1-16) shall govern any petition to compel arbitration** and the selection of an arbitrator, should the parties be unable to mutually agree upon a single neutral arbitrator. The arbitration shall be venued in a location convenient for all parties.

(Ex. A to Healey Decl., Arbitration Agreement, Article 7, emphasis added.)

As the Arbitration Agreement expressly provides that FAA and the procedural rules set forth in the FAA governs any petition to compel arbitration, the FAA applies to the instant petition to compel arbitration.

“The procedural provisions of the FAA ‘do[ ] not include a provision comparable to ... section 1281.2[ subdivision](c) and therefore requires courts to enforce written arbitration agreements even if there is pending litigation involving a third party that may result in conflicting rulings.’ (*Acquire II, Ltd. v. Colton Real Estate Group, supra*, 213 Cal.App.4th at p. 968, 153 Cal.Rptr.3d 135.) Under the FAA, ‘the court's only option in these circumstances is to stay the court proceeding and compel the arbitration.’ (*Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1115, 39 Cal.Rptr.3d 437 (*Rodriguez*).)” (*Wright v. Wellquest Elk Grove, LLC* (2026) 119 Cal.App.5th 267, 279.) If the FAA applies, then Code of Civil Procedure section 1281.2(c) cannot be applied to deny enforcement of the arbitration clause. (*Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438, 446 [“Because the Federal Arbitration Act (9 U.S.C. § 1 et seq; FAA) contains no provision analogous to section 1281.2, subdivision (c), that subdivision cannot be applied to deny the enforcement of the arbitration clauses governed by the FAA. [Citation.]”].) Under the FAA, “if a dispute presents multiple claims, some arbitrable and some not, the former must be sent to arbitration even if this will lead to piecemeal litigation.” (*KPMG LLP v. Cocchi* (2011) 565 U.S. 18, 19.) “A court may not issue a blanket refusal to compel arbitration merely on the grounds that some of the claims could be resolved by the court without arbitration. [Citation.]” (*Ibid.*)

Further, the Moving Defendants and the Decedent expressly excluded the application of Code of Civil Procedure section 1281.2(c). Article 6 states, in relevant part: “The parties agree that California Code of Civil Procedure §1281.2(c) is excluded from this Agreement as the parties mutually desire to have any and all disputes submitted to binding arbitration. The parties do not want any claims not subject to arbitration to impede any and all other claims from being ordered to binding arbitration.” (Ex. A to Healey Decl., Arbitration Agreement, Article 6.)

Based on the foregoing, since the FAA applies, Code of Civil Procedure section 1281.2(c) cannot be enforced to deny enforcement of the Arbitration Agreement here.

Plaintiffs cite to *Birl v. Heritage Care, LLC* (2009) 172 Cal.App.4th 1313, to support the application of Code of Civil Procedure section 1281.2(c), but the case did not involve the issue of the application of the FAA.

### ***Unconscionability***

Lastly, Plaintiffs argue that the Arbitration Agreement is unconscionable and should not be enforced.

Plaintiffs argue that the Arbitration Agreement is procedurally unconscionable because the Decedent did not have an authentic informed choice to reject the Arbitration Agreement as it is a complicated agreement containing extensive legal phrasing that is difficult to understand and is a pre-printed agreement not negotiated by the Decedent. Plaintiffs also contend that the preprinted boilerplate declaration form filed in support of the Petition does not state whether the Decedent had an opportunity to review the arbitration agreement (or read it) prior to signing, or whether the Decedent (who was suffering from a brain injury) had any questions in response to Ms. Gutierrez’s purported explanation of the agreement to him.

A party that opposes the petition to compel arbitration and raises a defense to enforcement bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) “Because unconscionability is a contract defense, the party asserting the defense bears the burden of proof.” (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911.)

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1281.) An agreement must be both procedurally and substantively unconscionable to permit the court to refuse to enforce the agreement or a given clause as unconscionable. (*Stirlen v. Supercuts, Inc.* (1997) 51 Cal.App.4th 1519, 1533.) “[T]hese elements, however, need not be present in the same degree. ‘[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.’” (*Mercuro v. Super. Ct.* (2002) 96 Cal.App.4th 167, 174.)

“A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’ [Citation.]” (*OTO, L.L.C. v. Kho* (2019) 8 Cal. 5th 111, 126.) An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’ [Citations.]” (*Ibid.*) A contract of adhesion is “a ‘standardized contract which, imposed and drafted by the party of superior bargaining strength,

relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.]” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492.)

The conclusion that an arbitration agreement is an adhesion contract “ ‘heralds the beginning, not the end, of [the court’s] inquiry into its enforceability.’ [Citation.] A procedural unconscionability analysis also includes consideration of the factors of surprise and oppression. [Citation.] ‘Procedural surprise focuses on whether the challenged term is hidden in a prolix printed form or is otherwise beyond the reasonable expectation of the weaker party.’ [Citation.]” (*Parada v. Superior Court* (2009) 176 Cal.App.4th 1554, 1571.) “The component of surprise arises when the challenged terms are ‘hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Abramson v. Juniper Networks, Inc.* (2004) 115 Cal.App.4th 638, 656.) Oppression may be found where a vulnerable party is under pressure to sign the agreement. (See *Haydon v. Elegance at Dublin* (2023) 97 Cal.App.5th 1280, 1288 [finding oppression where the party was under pressure to sign the agreement and arbitration provision because the party’s condition was declining, the party had limited financial resources, and the facility was offering a discount contingent on the party signing up quickly].) Surprise may be found where a party is presented with a long, dense agreement interspersed with several confusing signature blocks. (*Ibid.*) “Even where an arbitration provision allows a party to opt out, there may be procedural unconscionability if there is not ‘an authentic informed choice’ to make that decision.” (*Ibid.*)

As to procedural unconscionability, initially, the Arbitration Agreement is not a contract of adhesion. It clearly states in bold font at the top of the agreement: “**Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility.**” (Ex. A to Healey Decl.) It also states, “The execution of this Arbitration Agreement is not a precondition to receiving medical treatment, care, services and/or for admission to the Facility and is not a requirement to continue to receive medical treatment, care and services at the Facility.” (Ex. A to Healey Decl., Arbitration Agreement, Article 3.)

Significantly, Plaintiffs fail to present any evidence showing that the Decedent suffered from a brain injury, let alone showing the extent of that injury, or that the Decedent did not have an informed choice to reject the Arbitration Agreement. Plaintiffs do not demonstrate that the Arbitration Agreement is complicated or is difficult to understand. There is no evidence supporting oppression. Nor is there any evidence supporting surprise. The Arbitration Agreement was presented as a separate document.

Moving Defendants submit the Declaration of Jessica Gutierrez who provides that she is an employee of AG Laguna and that on or about April 13, 2023, she went over the admissions process with the Decedent, and explained the Arbitration Agreement to the Decedent in English, including that the agreement was not a precondition for admission to the facility, that it was optional, and that if the Decedent signed the Arbitration Agreement, the Decedent had 30 days within signature to rescind the agreement in writing. (Ex. B to Healey Decl., Declaration of Jessica Gutierrez, ¶¶ 2-3.) Gutierrez also provides that following the explanation, the Decedent agreed to sign the Arbitration Agreement. (*Id.*, ¶ 4.)

There is no evidence disputing the circumstances set forth in the Declaration of Jessica Gutierrez, or otherwise demonstrating that the Decedent was vulnerable or subject to undue pressure. The opposition is supported only by the declaration of counsel for the purpose of attaching a copy of the FAC. (See Declaration of Robert E. Makley.)

Further, Plaintiffs cite to no authority supporting that a drafting party must present evidence showing that the Decedent had an opportunity to review and/or read the Arbitration Agreement prior to signing, and stating whether the Decedent had any questions in response to the explanation of the Arbitration Agreement. Even if the Decedent had questions about the Arbitration Agreement, that is not a basis to deny arbitration. The “mere fact that a contract term is not read or understood by the non-drafting party or that the drafting party occupies a superior bargaining position will not authorize a court to refuse to enforce the contract.” (*A&M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 486.)

Plaintiffs make a sweeping assertion that “[i]n elder abuse litigation, the trial court may find a high degree of procedural unconscionability because of the relatively uniform context in which arbitration agreements are signed when an elder is admitted to a long-term care facility,” but cite to no cases in support of this assertion. (Opposition, 12:15-17.) Plaintiffs merely cite to “collected cases” in a secondary source.

Based on the foregoing, Plaintiffs fail to meet their burden of demonstrating that the Arbitration Agreement is procedurally unconscionable, and thus, fails to show establish that it is unconscionable. The Court need not address substantive unconscionability under these circumstances. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 494 [“A court should consider substantive unconscionability only after procedural unconscionability has been established”].)

In sum, Moving Defendants have demonstrated the existence of a valid agreement to arbitrate the first through third causes of action of Plaintiffs’ FAC. Plaintiffs fail to establish that Code of Civil Procedure section 1281.2(c) applies to defeat its application, or that the Arbitration Agreement is unconscionable. Thus, the Petition to Compel Arbitration is **GRANTED as the first three causes of action** of Plaintiffs’ FAC.

The Petition to Compel Arbitration is **DENIED as to the fourth cause** of action for **wrongful death**.

**Stay**

The moving papers request that the entire civil action be stayed pending a ruling from the Court on the instant petition to compel arbitration. That request is moot. Additionally, Code of Civil Procedure “section 1281.4 does not provide for an automatic stay” of the action pending a motion or petition to compel arbitration. (*Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 578 [finding there was no interim stay upon the filing of the motion to compel arbitration as the defendant did not demonstrate either that it had filed a motion to stay separate from its motion to compel arbitration, or that the trial court was required to rule on its stay request prior to the date of the notice hearing on the motion to compel arbitration].)

Based on the language in the Arbitration Agreement expressly incorporating the procedural provisions of the FAA, the **FAA’s procedural provisions** (9 U.S.C. §§ 3, 4, 10, 11) **apply**. (*Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 173-174.)

With regards to a stay of the action upon grant of the petition, “[i]f any suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such

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|    |                                                            | <p>arbitration has been had in accordance with the terms of the agreement, providing the application for the stay is not in default in proceeding with such arbitration.” (9 U.S.C. § 3.)</p> <p>The action is <b>STAYED</b> pending completion of arbitration.</p> <p>The Court sets an <b>ADR Review hearing</b> for <b>September 24, 2026 at 10:30 in C34.</b></p> <p><b>Moving Defendants to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 3. | <p><b>30-2023-01318153</b></p> <p><b>Feng vs. Feng</b></p> | <p><b>1. Motion to Enforce Settlement</b></p> <p>Defendant/Cross-Complainant Paul Ye-Chou Feng (“Paul”) moves for an order enforcing his settlement agreement with plaintiff/Cross-Defendant Rong Feng (“Ron”).</p> <p>Code of Civil Procedure section 664.6 states:</p> <p style="padding-left: 40px;">If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.</p> <p>“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.]” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.)</p> <p>The parties stipulated that this Court shall retain jurisdiction of this matter regarding any disputes that may arise regarding the interpretation, performance, or enforcement of their settlement agreement pursuant to Code of Civil Procedure section 664.6. (ROA 260.)</p> <p>The parties entered the settlement agreement on October 17, 2025. (Declaration of William C. Kersten, ¶ 1, Exhibit 1.) It provides that Ron shall receive 100% of Mrs. Feng’s financial assets held at Cathey United Bank in Taiwan and Paul shall receive none. Ron shall pay \$278,750 in cash to the William C. Kersten Trust Account and 50% shall be immediately released to Paul and the remaining \$139,375 shall remain in the William C. Kersten Trust Account until Ron receives Mrs. Feng’s Taiwan bank assets. The agreement expressly states that “Ron shall use his best efforts to obtain Mrs. Feng’s funds held in Taiwan in a timely manner.”</p> <p>The agreement notes that Paul has been represented by Ms. Eve Chen of the Eiger Law Office in Taiwan and Ron has been represented by Hung Ou Yang, Esq. in Taiwan and both parties agree to instruct both attorneys to cooperate in order to provide Ron with Mrs. Feng’s assets. Ron shall pay all attorney fees regarding services of Mr. Yang and attorney fees incurred by Ron with regard to any legal services provided by Ms. Chen shall be paid as follows: 75% by Ron and 25% by Paul. Ms. Chen provided Paul with a quote for a \$2,500 retainer fee along with an invoice in the same</p> |

amount. (Declaration of Paul Ye-Chou Feng, ¶ 1.) Ron has refused to pay 75% of Ms. Chen's invoice.

On November 17, 2025, the issue of Ron's nonpayment of Ms. Chen's retainer was mediated before the Honorable James P. Gray (Ret.) and Ron agreed to pay his 75% share as a result of the mediation by November 21, 2025. (Kersten Decl., ¶ 7.) However, he has failed to do so. (*Ibid.*) Paul now brings this motion to enforce the parties' settlement agreement and seeks an order compelling Ron to pay \$1,875.00 to Ms. Chen and instruct his attorney to cooperate with Ms. Chen in the transfer of assets, as well as an order that the \$139,375.00 held in trust be released immediately to Paul.

There is no dispute that the parties entered into the settlement agreement or that Ron agreed to pay 75% of Ms. Chen's retainer agreement during a teleconference on November 17, 2025 with the parties' mediator. The settlement agreement notes that Paul has been represented by Ms. Chen in Taiwan and goes on to provide that Ron shall pay 75% of any and all attorney fees and costs incurred by Ron with regard to any legal services provided by Ms. Chen. The agreement also requires Ron to use his "best efforts" to obtain Mrs. Feng's funds held in Taiwan in a timely manner.

By refusing to pay 75% of Ms. Chen's retainer as agreed, the Court finds that Ron is delaying the transfer of Mrs. Feng's funds held in Taiwan to him, in breach of his obligation to use his best efforts to obtain the funds in a timely manner. The timeliness of Ron obtaining those funds matters to Paul because the remaining \$139,375.00 held in the William C. Kersten Trust Account cannot be released to Paul until Ron obtains Mrs. Feng's funds.

Ron argues he has fully performed his obligations by transferring his 2/3 ownership interest in real property and paying Paul \$278,750.00. However, the agreement also provides that Ron must use best efforts to obtain Mrs. Feng's funds in a timely manner, which he has failed to do. Ron's partial compliance with his obligations does not negate the fact that he has delayed receipt of Mrs. Feng's funds.

Ron also argues that Paul himself has failed to cooperate in the transfer of funds by failing to obtain his Taiwanese passport until February 26, 2026 and refusing to provide a power of attorney or equivalent authorization. Ron argues that Paul's conduct is a material breach and Paul cannot use his own delay to manufacture a basis for enforcement of the agreement.

Attached to Ron's opposition is a declaration by his Taiwan counsel, Mr. Yang, in which Mr. Yang asserts that Paul and Ron must produce their Taiwanese IDs or Taiwanese passports to prove they are the children of Mrs. Feng in order to facilitate the asset transfer. Paul filed a declaration in this action (ROA 287) stating that he applied for his Taiwanese passport on February 26, 2026.

While it appears that Paul has also contributed to the delay in the transfer of assets by delaying obtaining a Taiwanese passport, the Court finds that his delay is not a material breach. Rather, it seems that Paul was not intentionally delaying the transfer and instead attempting to facilitate it by means that did not require him to obtain a Taiwanese passport. On the other hand, Ron has refused to pay 75% of Ms. Chen's retainer despite his express agreement to do so. Paul's own delay does not relieve Ron of his own obligation to use his own best efforts to effect the transfer in a timely manner.

In light of the above, the motion is **GRANTED to the extent it seeks to compel Ron to immediately pay to the William C. Kersten Trust Account \$1,875.00 to be paid to Ms. Chen**



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|    |                                         | <p>and to instruct his Taiwan counsel to cooperate with Ms. Chen to transfer Mrs. Feng’s financial assets.</p> <p>Paul also asks that the \$139,375 held in trust by the undersigned for Paul Feng be immediately released to him. However, <b>the agreement states that the balance is not to be released to Paul until Ron receives Mrs. Feng’s funds.</b> The Court <i>declines to order immediate release of the funds, which is contrary to the parties’ agreement.</i></p> <p>Paragraph 24 of the settlement agreement provides, in relevant part: “Should court intervention be required to resolve any disputes with regard to this Agreement, the prevailing party under <u>Code of Civil Procedure</u> § 664.6 shall be entitled to his reasonable attorney fees and costs.” Paul seeks attorney fees against Ron pursuant to this section. However, because both parties have engaged in conduct that has resulted in delay, the <b>request for attorney fees is DENIED.</b></p> <p><b>Moving party to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 4. | 30-2025-01500072<br>Salmeron v. Audicus | <ol style="list-style-type: none"> <li>1. Motion to Compel Answers to Form Interrogatories</li> <li>2. Motion to Compel Answers to Form Interrogatories</li> <li>3. Motion to Compel Answers to Form Interrogatories</li> <li>4. Motion to Compel Answers to Form Interrogatories</li> <li>5. Motion to Compel Answers to Form Interrogatories</li> <li>6. Motion to Compel Answers to Form Interrogatories</li> <li>7. Motion to Compel Answers to Form Interrogatories</li> <li>8. Motion to Compel Answers to Form Interrogatories</li> <li>9. Motion to Compel Arbitration</li> <li>10. Motion to Deem Facts Admitted</li> <li>11. Motion to Deem Facts Admitted</li> <li>12. Order to Show Cause re: Appointment of Referee</li> </ol> <p>Defendants Audicus, Inc. and Andre Sequin (“Defendants”) move to compel arbitration.</p> <p>Plaintiff Maria Medrano Salmeron (“Plaintiff”) opposes the motion.</p> <p>In compelling arbitration, “the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165; Cal. Rules of Court, rule 3.1330.) “The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.” (<i>Ibid.</i> [internal citations omitted].)</p> <p>Importantly, “[f]or this step, ‘it is not necessary to follow the normal procedures of document authentication.’” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165 [citing <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218].) In fact, the moving party can meet its burden of establishing “evidence of a written agreement to arbitrate the controversy” by (1) “attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature” or (2) “setting forth the agreement’s provisions in the motion.” (<i>Ibid.</i>)</p> <p>“If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to</p> |

meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) “The opposing party can do this in several ways.” (*Ibid.*) For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (*Ibid.* [citing *Bannister, supra*, 64 Cal.App.5th at p. 546, 279 Cal.Rptr.3d 112 [never saw or signed agreement]; *Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1065, 255 Cal.Rptr.3d 695 (*Fabian*) [never given or signed contract]; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1054, 201 Cal.Rptr.3d 318 (*Espejo*) [did not recall seeing or signing document]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, 181 Cal.Rptr.3d 781 (*Ruiz*) [did not recall signing agreement].)

“If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (*Id.*, 165–166.)

Although [p]ublic policy favors contractual arbitration as a means of resolving disputes ... that policy does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 166 [internal quotations omitted].)

Here, the Court finds that Defendant has sufficiently authenticated Plaintiff’s signature on the Worksite Employee Acknowledgment and Arbitration Clause contained therein pursuant to the holdings in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843–844, *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062, and the other related case law cited by the parties.

For example, Christian Sjulsen, who is the “Head of Consumer” and testified that he is “familiar with Audicus’ operations, and Plaintiff’s employment with Audicus, including Audicus’ onboarding practices with Justworks.” (ROA 147, Declaration of Christian Sjulsen, ¶ 4.) Sjulsen also testified that in his position, he has “he access to personnel records, which are maintained in the ordinary course of business. I reviewed Plaintiff’s personnel file, as well as the Arbitration Agreement signed by Plaintiff on or about July 11, 2023 with Justworks.” (ROA 147, Declaration of Christian Sjulsen, ¶ 7.)

Then, Kyle Johnson testified about the process pursuant to which Plaintiff would sign the subject agreement. (ROA 148, Declaration of Kyle Johnson, ¶¶ 2- 6.) Johnson stated that each employee creates an individual employee account with JustWorks. JustWorks is a third party hired to conduct HR procedures, such as onboarding and tax paperwork. Once an employee creates an individual employee account with JustWorks, the employee is prompted to sign the Employee Worksite Acknowledgement Agreement. When the employee signs documents on JustWorks, their name, the date, and the IP address at which the signature was made is recorded on JustWorks and is stored with Just Works.

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|    |                                                           | <p>JustWorks also contains the employee’s wage statements and personnel file documents, including tax documents (such as a W-2), benefit plan documents, and others. Importantly, all of the documents that Plaintiff signed or that pertain to Plaintiff are stored on her JustWorks account and are accessible to her at her discretion. Given the above, the Court finds that the electronic signature has been sufficiently authenticated such that the electronic signature was an act of Plaintiff.</p> <p>Next, the Court finds that the Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment and therefore, contrary to Plaintiff’s argument, the Offer of Employment does not govern. The Arbitration Clause contained in the Worksite Employee Acknowledgment expressly states</p> <p style="padding-left: 40px;">“This is the entire agreement between you, on the one hand, and Worksite Employer and/or Justworks, on the other hand, regarding dispute resolution, and this arbitration agreement supersedes any and all prior agreements regarding these issues. Any agreement contrary to the foregoing must be entered into, in writing, signed by you, the authorized representative of Worksite Employer and the CEO of Justworks.”</p> <p>This document was signed by Plaintiff on July 11, 2023 at 12:59 p.m. Thus, the Acknowledgment with the Arbitration Clause was signed after Plaintiff signed the offer of employment letter and supersedes any agreement to resolve disputes in the Court as Plaintiff argues. There is no ambiguity in the term that expressly state that the Worksite Employee Acknowledgment supersedes any prior agreements.</p> <p>The Court is not persuaded by Plaintiff’s argument that the Acknowledgment is illusory.</p> <p>The Court finds that the Arbitration Clause is binding and enforceable. The Court finds that the Arbitration Clause meets the requirements set forth in <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102, which holds that an <u>employment</u> arbitration agreement is lawful and therefore enforceable if it “(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum.” (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 102.)</p> <p>Given the above, the Motion to Compel Arbitration is <b>GRANTED</b> and the action is <b>STAYED</b>.</p> <p>Accordingly, the discovery motions and related OSC re discovery referee are taken <b>OFF CALENDAR</b>.</p> <p>The Court sets an <b>ADR Review hearing for October 1, 2026 at 10:30 a.m. in C34</b>.</p> <p><b>Moving party to give notice.</b></p> |
| 5. | <p><b>30-2024-0137003</b></p> <p><b>Dib vs. Daher</b></p> | <p><b>1. Motion for Summary Judgment and/or Adjudication</b></p> <p>Plaintiffs Joseph Dib and R&amp;R Life is Amazing (“Plaintiffs”) move for summary judgment against Defendant K&amp;A Holdings, LLC as to the first cause of action for fraudulent transfers in violation of Civil Code section 3439.04, second cause of action for conspiracy to fraudulently convey property, third cause of action aiding and abetting fraudulent conveyance of property,</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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|  | <p>fourth cause of action for accounting, and fifth cause of action for imposition of constructive trust and/or preliminary and permanent injunction, and account.</p> <p>Defendant K&amp;A Holdings, LLC opposes the motion.</p> <p>In the motion, Plaintiffs present five issues. Each of the issues depends on facts deemed admitted in the Court’s 04/24/2025 Minute Order deeming requests for admission admitted by Defendant K&amp;A Kingdom Holdings LLC. This order has been VACATED and therefore the requests for admission discussed and replied upon in the motion for summary judgment are no longer deemed admitted by Defendant K&amp;A Holdings, LLC.</p> <p>Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if one material fact is disputable, then the issue fails. Such is the case here since at least some of the “undisputed material facts” in support of each issue presented in the motion and separate statement rely upon the facts deemed admitted in the Court’s 04/24/2025 Minute Order. The order deeming these facts admitted has been vacated and therefore the facts are no longer deemed admitted and are not “undisputed facts” that support Plaintiffs’ motion for summary judgment.</p> <p>As such, the Motion for Summary Judgment is <b>DENIED</b> without prejudice.</p> <p><b>Defendant to give notice.</b></p> |
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